The Constitution visualises the SPSC to be the 'watchdog of merit system' in the state. It is concerned with the recruitment to the state services and advises the government, when consulted, on promotion and disciplinary matters. It is not concerned with the classification of services, pay and service conditions, cadre management, training and so on. These matters are handled by the Department of Personnel or the General Administration Department. Therefore, the SPSC is only a central recruiting agency in the state while the Department of Personnel or the General Administration Department is the central personnel agency in the state.

The role of SPSC is not only limited, but also recommendations made by it are only of advisory nature and hence, not binding on the government. It is up to the state government to accept or reject that advice. Further, the government can also make rules which regulate the scope of the advisory functions of the SPSC[4].

Also, the emergence of State Vigilance Commission (SVC) affected the role of SPSC in disciplinary matters. This is because both are consulted by the government while taking disciplinary action against a civil servant. The problem arises when the two bodies tender conflicting advice. However, the SPSC, being an independent constitutional body, has an edge over the SVC.

It must be noted here that the SPSC is consulted by the governor while framing rules for appointment to judicial service of the state other than the posts of district judges. In this regard, the concerned state high court is also consulted.

JOINT STATE PUBLIC SERVICE COMMISSION

The Constitution makes a provision for the establishment of a Joint State Public Service Commission (JSPSC) for two or more states. While the UPSC and the SPSC are created directly by the Constitution, a JSPSC can be created by an act of Parliament on the request of the state legislatures concerned. Thus, a JSPSC is a statutory and not a constitutional body.

The chairman and members of a JSPSC are appointed by the President. They hold office for a term of six years or until they attain the age of 62 years, whichever is earlier. They can be suspended or removed by the President. They can also resign from their offices at any time by submitting their resignation letters to the President.

The number of members of a JSPSC and their conditions of service are determined by the President.

A JSPSC presents its annual performance report to each of the concerned state governors. Each governor places the report before the state legislature.

Table 45.1 Articles Related to the SPSC at a Glance

Article No.	Subject-matter
315	Public Service Commissions for the Union and for the states
316	Appointment and term of office of members